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Non-existing ethnic problem in Sri Lanka



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In his article under the above title in the Island of Saturday 3rd December, my old friend P.S. Mahawatta pays me two inaccurate compliments. Firstly, he says, using the present tense, that I am a very good chess player. I am not. All my chess trophies were won several decades ago and it is nearly half a century since I was the National Chess Captain. He also attributes to me the following quotation, “Our children and our children’s children should be able to say with one voice – Lanka is our great Motherland and we are one people from shore to shore; we speak two noble languages but with one voice; and this constitution that our fathers fashioned together in times of yore shall serve our nation’s charter for the years to be”. This quotation is from a submission made by a group of senior citizens of Jaffna to the constitutional council in 1971. This group, the remnants of the [Jaffna Youth Congress](#) that peaked in the 20s, included my father but not myself. I believe it was my father who drafted the memorandum. While I endorse the sentiments expressed in the quotation, I cannot claim credit for it.

I disagree with P.S. Mahawatta on whether we do have an ethnic problem. The succession of ethnic violence and ethnicity based political crisis and the long civil war surely prove that we do have an ethnic problem. Perhaps if the policy of the Jaffna Youth Congress (not to be confused with the communal minded [All Ceylon Tamil Congress](#)) of teaching Sinhalese and Tamil in all schools in Sri Lanka as compulsory subjects had been adopted, there may have been no ethnic problem. In fact all leading schools in Jaffna taught Sinhalese as a compulsory subject till 1956.

I do hope that the efforts of the present government to resolve the ethnic problem succeed. But given our recent history, it will be a difficult task. A new constitution may be needed as part of the solution.

At the time of independence the three major components of the ethnic problem were citizenship, language and colonisation. The citizenship issue came to a head immediately after independence with the Muslim members of parliament and the leading Tamil MPs joining the Government to deprive the Indian Tamils of citizenship and voting rights. The Government was motivated by the fact that they had a very narrow majority in Parliament and if all the minorities and the left parties joined hands the Government party may have lost the next elections. The biggest losers were, of course, the Indian Tamils who became almost unrepresented in Parliament. Despite the loss of the bulk of the voters, the electorates were not re-demarcated with the result that in the following election virtually all the seats previously won by Indian Tamil candidates were secured by Sinhalese candidates of the governing party. In effect, the voting power of the Indian Tamils was transferred to the Sinhalese voters of the electorates previously dominated by Indian Tamil voters. This situation resembled that which prevailed in the USA at the time of US independence. In that constitution Black American slaves were counted as three-fifths of a human being for the purpose of demarcating electorates but they remained voteless. There too the effect of this rule was to transfer the potential voting power of the Blacks to the Whites of the slave owning states to the detriment, primarily of the slaves but also of the White voters of the northern states without slaves. In the USA the abolition of slavery following the civil war sharply tilted the balance in favour of the northern states. In Sri Lanka, there was no such dramatic change but, following the [Sirima-Shastri Agreement](#), large numbers of Indian Tamils went back to India and, correspondingly, those who remained gradually gained citizenship and voting rights.

In Sri Lanka an important consequence of depriving the Indian Tamils of citizenship and voting rights was to weaken the position in Parliament of the left parties (LSSP and CP) and other Tamil speaking minorities, especially the Sri Lankan Tamils. In fact, this was anticipated by a fraction of the All Ceylon Tamil Congress (ACTC) that broke off under the leadership of S J V Chelvanayagam and formed the Federal Party (ITAK). The ACTC joined the government. Unfortunately, at the very next election in 1952, it was the Tamil party which joined the government, the All Ceylon Tamil Congress that fared better, particularly in Jaffna, and even Chelvanayagam lost his seat. The Sri Lankan Tamil voters were slow to see the political consequences of the loss of citizenship and voting rights of the Indian Tamils, which greatly facilitated the movement for Sinhala as the only official language of the country. This movement was led by the newly formed SLFP under S W R D Bandaranaike but quickly followed by the UNP. There were inevitably other consequences, such as recruitment to the public services, all of which worked against the interests of the Tamil speaking people. The Muslim leaders voted for Sinhala only except for two Members of Parliament from the East and one Senator (A M A Azeez), originally from Jaffna, who resigned from the UNP on this issue.

The disenfranchisement and loss of voting rights of the Indian Tamils led to the promotion of the idea of a predominantly mono-ethnic Sinhalese nation ruling this island. The settlement of Sinhalese colonists, especially in the predominantly Tamil speaking East was accelerated, presumably with the view to making the East a Sinhalese majority. At present, the population of the East is almost equally divided between Sinhalese, Muslims and Tamils. Clearly, there is an ethnic problem in an island that was almost free from one prior to independence.

There were attempts to resolve the problem e.g. through negotiations between Bandaranaike and Chelvanayagam leading to the [Bandaranaike-Chelvanayagam Pact](#), but this pact was unilaterally torn up by Bandaranaike in 1958. A decade later, there were negotiations between Dudley Senanayake and Chelvanayagam leading to the Dudley-Chelvanayagam Pact, but this too was unilaterally repudiated by Dudley Senanayake. Much later, in the early 80s, in the middle of the civil war, India intervened and President J R Jayawardena signed an agreement with India’s President Rajiv Gandhi to introduce the 13th amendment to the Sri Lankan Constitution with a view to resolving the ethnic problem. But this amendment was not effectively implemented, and the war resumed till it eventually ended in the year 2009 with the destruction of the LTTE that had claimed to fight on behalf of the Tamil people.

The end of the war did not resolve the ethnic problem, but the present administration that was elected in 2015 is making some attempts to resolve the problem. Hopefully this will succeed. However, given our recent history it will be a difficult task. In any case, what is clear is that the ethnic problem has not yet been resolved. Its resolution requires a new constitution in line with the quotation in the first paragraph.

Those who enjoyed this article may find “[National Reconciliation – A pipe dream unless inclusivity achieved](#)” and “[Black July: Government promises and our future](#)” illuminating.

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